

1 ENGROSSED SENATE
2 BILL NO. 1491

By: Paxton of the Senate

3 and

4 Hilbert of the House

5
6 An Act relating to Presidential Electors; amending 26
7 O.S. 2021, Section 10-108, which relates to
8 vacancies; updating statutory language; prescribing
oath for Electors filling vacancies; and providing an
effective date.

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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. AMENDATORY 26 O.S. 2021, Section 10-108, is
13 amended to read as follows:

14 In the event any Presidential Elector fails to meet at the
15 Governor's office at the prescribed time or refuses or fails to vote
16 for the persons nominated for the offices of President and Vice
17 President by the political party ~~which~~ that nominated the
18 Presidential Elector, ~~it shall be the duty of~~ the Electors present
19 at the prescribed time and place ~~aforesaid to~~ shall appoint a person
20 to fill such vacancy. The person appointed to fill the vacancy
21 shall subscribe to an oath stating that the appointee will cast a
22 ballot for the persons nominated for the offices of President and
23 Vice President by the appointee's political party. The oath shall

1 be witnessed by the Governor or the Governor's designee and filed
2 with the Secretary of State.

3 SECTION 2. This act shall become effective November 1, 2026.

4 Passed the Senate the 24th day of March, 2026.

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6 Presiding Officer of the Senate

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8 Passed the House of Representatives the ____ day of _____,
9 2026.

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11 Presiding Officer of the House
12 of Representatives